SECTION 408 PUBLIC RECORD ANALYSIS

MRT Phase 1 — Stakeholder Impact & Record Sufficiency Matrix

Notice No.: 408-NWK-2025-0011 · Issued: April 9, 2026 · Expires: April 24, 2026
Requester: Port KC · Location: East Bottoms Unit Levee / Blue River Channel, Jackson Co., MO

KEY: Y — Present in record | N — Absent from record | P — Partial / implied | U — Unknown / undisclosed | — Not applicable

POPULATION / STAKEHOLDER	BENEFIT PATHWAY	HARM PATHWAY	DATA PRESENT?	CONSULTED?	NAMED BUT ABSENT?	MITIGATION PRESENT?	RESIDUAL RISK
▸ TRIBAL NATIONS							
Osage Nation Aboriginal territory; MO/KS/OK	Economic activity in ancestral corridor	Levee/channel alteration in unceeded cultural territory; no consultation record	N	U	Y	N	High — no consultation record; historic properties determination made without named tribal input
Iowa Tribe of KS & NE Kansas / Nebraska	—	Impacts to Blue River riparian corridor; potential cultural/burial sites undisclosed	N	U	Y	N	High — not individually named; generic "Indian Tribes" solicitation only
Kickapoo Tribe in Kansas Brown Co., KS	—	Missouri River corridor impacts; subsistence and cultural resource exposure	N	U	Y	N	High
Sac & Fox Nation (MO/KS/NE) Multi-state aboriginal range	—	Blue River / Missouri River confluence area; historic land use not evaluated	N	U	Y	N	High
Delaware Tribe of Indians Bartlesville, OK	—	Historic presence in MO/KS corridor; no individual tribal analysis disclosed	N	U	Y	N	High
Wyandotte Nation Wyandotte, OK	—	Historic KC-area presence; "no historic properties" SHPO determination made without named tribal input	N	U	Y	N	High — SHPO concurrence predates any disclosed tribal engagement
Shawnee Tribe Miami, OK	—	Missouri River corridor; cultural and burial sites	N	U	Y	N	High

POPULATION / STAKEHOLDER	BENEFIT PATHWAY	HARM PATHWAY	DATA PRESENT?	CONSULTED?	NAMED BUT ABSENT?	MITIGATION PRESENT?	RESIDUAL RISK
		in general project area undocumented					
Miami Tribe of Oklahoma Miami, OK	—	Regional historic presence; no individual analysis in record	N	U	Y	N	High
Otoe-Missouria Tribe Red Rock, OK	—	Namesake of Missouri River; strong territorial claim; no consultation named	N	U	Y	N	High — absence especially notable given project's Missouri River nexus
▸ COMMUNITIES							
East Bottoms (KC, MO) Adjacent residential/industrial fringe	Potential local employment; improved freight access	Flood-risk exposure; increased truck/freight traffic; levee integrity uncertainty during construction	N	N	N	N	High — directly adjacent to levee alteration; no community impact analysis
Historic East Side KC Majority Black; environmental justice area	Indirect economic development	Cumulative industrial burden; no EJ analysis disclosed; induced freight traffic	N	N	N	N	High — no EJ screening; cumulative industrial burden unquantified
Argentine / Armourdale (KCK) Downstream; historically flood-prone	—	Downstream backwater / channel-constriction effects; no hydraulic modeling disclosed	N	N	N	N	High — repeatedly flooded historically; backwater effects undisclosed
North KC (downstream MO) Missouri River floodplain adjacent	—	Residual flood risk from levee alteration; cumulative channel modification	N	N	N	N	Moderate-High — depends on undisclosed hydraulic modeling
▸ WORKERS							
Construction Workers (temporary) Phase 1 build-out	Short-term employment; wages	Levee work / trestle construction safety; hazardous site exposure; no construction safety plan in record	N	–	N	N	Moderate — no construction safety or loading analysis disclosed
Terminal Operations Workers (long-term) Logistics, warehousing, transloading	Permanent employment; regional logistics wages	Flood exposure at industrial site; residual levee risk; no long-term operations plan in record	N	–	N	N	Unknown — buildout scope not bounded in record

POPULATION / STAKEHOLDER	BENEFIT PATHWAY	HARM PATHWAY	DATA PRESENT?	CONSULTED?	NAMED BUT ABSENT?	MITIGATION PRESENT?	RESIDUAL RISK
Rail / Barge Operations Workers Intermodal corridor	Expanded intermodal capacity; employment	Channel alteration impacts on navigation; trestle debris risk during operations	N	–	N	N	Unknown
▸ DOWNSTREAM FLOOD-RISK POPULATIONS							
East Bottoms Floodplain Residents Within / adjacent FEMA flood zone	—	Levee impairment during construction; increased inundation risk; no residual-risk analysis	N	N	N	N	High — levee haul road directly affects flood protection; no geotechnical analysis disclosed
Downstream Agricultural Landowners Missouri River corridor, MO/KS	—	Backwater / channel-constriction flood stage changes; induced damages not assessed	N	N	N	N	Unknown — hydraulic modeling absent from record
FEMA / Local Floodplain Administrators Jackson Co.; KC, MO; KCK	—	FEMA map compliance; LOMA/CLOMR implications; no coordination disclosed	N	U	N	–	Moderate — FEMA coordination not disclosed
▸ FREIGHT CORRIDOR & TRANSPORT USERS							
I-435 / Highway Users Adjacent interchange; regional traffic	Improved port access; freight efficiency	Construction traffic impacts; haul road routing; induced truck volumes undisclosed	N	N	N	N	Moderate
River Barge Operators Missouri River navigation	Expanded terminal berthing	Temporary trestle debris; channel constriction during construction; Coast Guard declined jurisdiction but navigation impacts not resolved	N	N	N	N	Moderate — USCG declined jurisdiction; navigation analysis absent
Rail Operators CPKC, BNSF — adjacent rail corridor	Intermodal transloading; expanded rail-port integration	Construction proximity to active rail; phasing conflicts undisclosed	N	U	N	N	Unknown
▸ ENVIRONMENTAL RECEPTORS							
Indiana Bat ESA-listed; endangered	—	Habitat tree clearing; seasonal window restriction Apr 1–Oct 31 implemented	P	–	Y	P	Moderate — seasonal clearing restriction present but habitat assessment not released

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Northern Long-Eared Bat ESA-listed; threatened	—	Same clearing window; cumulative roost impacts not assessed	P	–	Y	P	Moderate
Tricolored Bat ESA-listed; endangered	—	Same clearing window; winter hibernaculum impacts not disclosed	P	–	Y	P	Moderate
Pallid Sturgeon ESA-listed; endangered	—	Missouri River / Blue River channel alteration; scour, sedimentation, turbidity; no hydraulic or fish-passage analysis	P	–	Y	N	High — aquatic receptor with direct channel exposure; no scour/hydraulic analysis
Blue River Riparian Corridor Aquatic / wetland habitat	—	225-ft temporary trestle; channel constriction; sedimentation; no riparian impact assessment	N	–	N	N	High — direct physical disturbance; no channel restoration plan in record
Missouri River Mainstem Federally managed; navigation / ecosystem	Port access improvement	Cumulative channel modification; induced industrial runoff; sediment loading from haul road construction	N	–	N	N	Unknown — no cumulative basin-level analysis
▸ AGENCIES & GOVERNMENTS							
Missouri SHPO State Historic Preservation Office	—	—	Y	Y	–	–	Low — concurred Apr. 17, 2025; "no historic properties affected" (underlying docs not released)
USFWS ESA consultation authority	—	—	P	P	–	–	Moderate — "NLAA" determination implies informal consultation; no BO or concurrence letter released
U.S. Coast Guard Navigation / RHA authority	—	—	P	Y	–	–	Moderate — declined jurisdiction; basis and scope of that determination undisclosed

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Jackson County / KC, MO Local governments; floodplain authority	Economic development; tax base	Emergency management exposure; infrastructure burden; no local coordination disclosed	N	U	N	N	Moderate
MoDNR / MoDOT State environmental / transportation	—	State environmental compliance; transportation network impacts	N	U	N	N	Unknown
EPA Region 7 Environmental oversight; CWA authority	—	CWA 404 exemption may not fully cover induced runoff / sedimentation at scale	N	U	N	N	Unknown — CWA 404 exemption basis not disclosed beyond conclusory statement

Data Present: Y = analysis/data disclosed in public notice record · N = absent from record · P = partially present or implied · U = unknown / not disclosed

Consulted: Based solely on what is stated in Public Notice 408-NWK-2025-0011 (issued April 9, 2026). Absence of disclosure ≠ absence of consultation — but the record does not permit verification.

Named but Absent: Stakeholder class referenced generically in notice ("Indian Tribes," "local agencies") without individual identification or engagement documentation.

Sources: USACE Public Notice 408-NWK-2025-0011; Port KC project materials (as described in notice); USFWS ESA consultation standards; NHPA Section 106 / 36 CFR 800; USACE Section 408 Policy (ER 405-1-12).

Note: This matrix reflects gaps in the *public record* as released. It is not a determination of actual project impacts.